NOTICE OF PROPOSED CONSTITUTIONAL AMENDMENTS TO THE CONSTITUTION OF THE STATE OF HAWAII

During the Regular Sessions of 2025 and 2026, Thirty-Third Legislature, TWO (2) measures containing proposed constitutional amendments were adopted in conformance with the requirements of Article XVII, Section 3 of the Hawaii State Constitution.

S.B. No. 121
PROPOSING AN AMENDMENT TO ARTICLE VI, SECTION 3, OF THE HAWAII STATE CONSTITUTION TO ALLOW THE SENATE MORE TIME TO CONFIRM JUDICIAL APPOINTMENTS.

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF HAWAII:

SECTION 1. The legislature finds that the Hawaii State Constitution requires the senate to act within thirty days upon receipt of a judicial appointment. The legislature further finds that judicial appointments can, and have been, made throughout the year including during the interim when the senate is not in session, thus requiring the senate to call itself back to convene a special session to consider those appointments. In recent years, the timing of judicial appointments has necessitated two special sessions and, in 2022, three special sessions. Due to the thirty-day window, some special sessions have addressed just one or two appointments. Additionally, some special sessions have occurred in mid- or late November, not far from the start of the legislative session in January. Each special session costs approximately $5,000 for airfare and per diem for neighbor island senators, in addition to senator and staff time.

The legislature concludes that lengthening the period of time allowed for the senate to consider judicial appointments made when the senate is not in regular session or is about to adjourn the regular session will provide flexibility in the scheduling of special sessions and may reduce the number of special sessions.

Accordingly, the purpose of this Act is to propose an amendment to article VI, section 3, of the Hawaii State Constitution to allow the senate sixty days during certain times of the year in which to consider and act on the appointments of justices and judges.

SECTION 2. Article VI, section 3, of the Constitution of the State of Hawaii is amended to read as follows:

"**APPOINTMENT OF JUSTICES AND JUDGES**

Section 3. The governor, with the consent of the senate, shall fill a vacancy in the office of the chief justice, supreme court, intermediate appellate court and circuit courts by appointing a person from a list of not less than four, and not more than six nominees for the vacancy presented to the governor by the judicial selection commission.

If the governor fails to make any appointment within thirty days of presentation, or within ten days of the senate's rejection of any previous appointment, the appointment shall be made by the judicial selection commission from the list with the consent of the senate. If the senate fails to reject any appointment within thirty days thereof, <u>or sixty days if the appointment is made between April 1 and December 31,</u> the senate shall be deemed to have consented to that appointment. If the senate rejects any appointment, the governor shall make another appointment from the list within ten days thereof. The same appointment and consent procedure

shall be followed until a valid appointment has been made, or failing this, the judicial selection commission shall make the appointment from the list, without senate consent.

The chief justice, with the consent of the senate, shall fill a vacancy in the district courts by appointing a person from a list of not less than four and not more than six nominees for the vacancy presented to the chief justice by the judicial selection commission. If the chief justice fails to make any appointment within thirty days of presentation, or within ten days of the senate's rejection of any previous appointment, the appointment shall be made by the judicial selection commission from the list with the consent of the senate. If the senate fails to reject any appointment within thirty days thereof, or sixty days if the appointment is made between April 1 and December 31, the senate shall be deemed to have consented to that appointment. If the senate rejects any appointment, the chief justice shall make another appointment from the list within ten days thereof. The same appointment and consent procedure shall be followed until a valid appointment has been made, or failing this, the judicial selection commission shall make the appointment from the list, without senate consent. The chief justice shall appoint per diem district court judges as provided by law.

The judicial selection commission shall disclose to the public the list of nominees for each vacancy concurrently with the presentation of each list to the governor or the chief justice, as applicable.

QUALIFICATIONS FOR APPOINTMENT

Justices and judges shall be residents and citizens of the State and of the United States, and licensed to practice law by the supreme court. A justice of the supreme court, judge of the intermediate appellate court and judge of the circuit court shall have been so licensed for a period of not less than ten years preceding nomination. A judge of the district court shall have been so licensed for a period of not less than five years preceding nomination.

No justice or judge shall, during the term of office, engage in the practice of law, or run for or hold any other office or position of profit under the United States, the State or its political subdivisions.

TENURE; RETIREMENT

The term of office of justices and judges of the supreme court, intermediate appellate court and circuit courts shall be ten years. Judges of district courts shall hold office for the periods as provided by law. At least six months before the expiration of a justice's or judge's term of office, every justice and judge shall petition the judicial selection commission to be retained in office or shall inform the commission of an intention to retire. If the judicial selection commission determines that the justice or judge should be retained in office, the commission shall renew the term of office of the justice or judge for the period provided by this section or by law.

Justices and judges shall be retired upon attaining the age of seventy years. They shall be included in any retirement law of the State."

SECTION 3. The question to be printed on the ballot shall be as follows:

"Shall the Constitution of the State of Hawaii be amended to allow the Senate more time to consider and act on the appointments of justices and judges, by increasing the timeframe from thirty days to sixty days for appointments made between April 1 and December 31 when the senate is not in regular session or is about to adjourn the regular session?"

SECTION 4. New constitutional material is underscored.

SECTION 5. This amendment shall take effect upon compliance with article XVII, section 3, of the Constitution of the State of Hawaii.